Amendment activity but has simply chosen not to subsidize TWR's lobbying out of public funds. *Cammarano* v. *United States*, 358 U. S. 498. Pp. 545–546.

2. Nor does § 501(c)(3) violate the equal protection component of the Fifth Amendment. The sections of the Code at issue do not employ any suspect classification. A legislature's decision not to subsidize the exercise of a fundamental right does not infringe that right and thus is not subject to strict scrutiny. It was not irrational for Congress to decide that tax-exempt organizations such as TWR should not further benefit at the expense of taxpayers at large by obtaining a further subsidy for lobbying. Nor was it irrational for Congress to decide that, even though it will not subsidize lobbying by charities generally, it will subsidize lobbying by veterans' organizations. Pp. 546–551.

219 U. S. App. D. C. 117, 676 F. 2d 715, reversed.

REHNQUIST, J., delivered the opinion for a unanimous Court. BLACKMUN, J., filed a concurring opinion, in which BRENNAN and MARSHALL, JJ., joined, *post*, p. 551.

Solicitor General Lee argued the cause for appellants in No. 81–2338. With him on the briefs were *Assistant Attorney General Archer*, *Deputy Solicitor General Wallace*, *Stuart A. Smith*, *Richard Farber*, and *Robert S. Pomerance*.

John Cary Sims argued the cause for appellee in No. 81–2338. With him on the brief were *Alan B. Morrison* and *Thomas F. Field*.†

JUSTICE REHNQUIST delivered the opinion of the Court.

Appellee Taxation With Representation of Washington (TWR) is a nonprofit corporation organized to promote what it conceives to be the "public interest" in the area of federal

---

†Briefs of *amici curiae* urging reversal were filed by *Sheldon S. Cohen*, *Julie Noel Gilbert*, *Dennis B. Drapkin*, *George H. Gangwere*, and *Wilmer S. Schantz, Jr.*, for the Veterans of Foreign Wars of the United States; by *Joseph C. Zengerle* and *Zachary R. Karol* for the Disabled American Veterans et al.; and by *Mitchell Rogovin* and *George T. Frampton, Jr.*, for the American Legion.

Thomas A. Troyer, *H. David Rosenbloom*, *Albert G. Lauber, Jr.*, and *John G. Milliken* filed a brief for the American Association of Museums et al. as *amici curiae* urging affirmance.